

Petition 1 — Enhancement of Agricultural Electricity Connection to 5 HP for Deep Borewells in the Chittur Rain-Shadow Belt

To: Shri Sunny Joseph Hon'ble Minister for Electricity, Government of Kerala Thiruvananthapuram

Copy to: 1. Shri T. Siddique, Hon'ble Minister for Agriculture 2. Shri Mons Joseph, Hon'ble Minister for Water Resources (Irrigation & Ground Water)

From: The Chittur Agriculture Marketing Society, Kozhinjampara, Chittur Taluk, Palakkad District — represented by [Name, designation] and delegation.

Through: Adv. Sumesh Achuthan, MLA, Chittur Constituency.

Date: 15 July 2026, Thiruvananthapuram.

Subject: Request, for the **entire Chittur Assembly constituency (Chittur taluk / block, Palakkad District)**, to (a) grant agricultural electricity connections for deep irrigation borewells **directly through KSEB, without any involvement of the Ground Water Authority**; (b) permit and expedite such connections up to **5 HP** (and, where justified, above 5 HP); and (c) **simplify and ease the permission to install a TT (change-over) switch** for agricultural connections.

1. Respected Sir,

We are farmer-representatives of the Chittur Agriculture Marketing Society, Kozhinjampara. We respectfully place before you the acute irrigation-power difficulty faced by farmers **across the Chittur Assembly constituency** — most acutely in the eastern rain-shadow panchayats but affecting cultivators throughout Chittur taluk / block — and pray for your intervention. **The reliefs prayed for below are sought for the entire Chittur constituency, and not merely for a few panchayats.**

2. The factual position

- 1. Kerala's driest belt.** Chittur — and in particular Eruthempathy, Vadakarapathy and Kozhinjampara — lies in the Palakkad Gap **rain-shadow region**, the driest tract in Kerala. Annual rainfall here is only about **1,000 mm (and often less)**, against the State average of roughly **3,000 mm** — barely **one-third** of the State average. The surrounding hills block the rain-bearing winds.
- 2. A "Critical" groundwater block.** As per the Central Ground Water Board's *National Compilation on Dynamic Ground Water Resources of India (2023 and 2024)*, **Chittur is one of only two or three "Critical" groundwater blocks in the entire State of Kerala** (along with Malampuzha and Kasaragod), where the stage of groundwater extraction is between 90% and 100%.
- 3. Deepening borewells.** Because surface water is scarce and rainfall is low, farmers depend almost entirely on borewells. Water tables have fallen steeply — borewells that were once 400–600 ft now increasingly **cross 800–1,000 ft** across the Chittur belt.
- 4. The power bottleneck — the exact legal position.** Following the groundwater regime tightened after the Plachimada (Perumatty panchayat) bottling-plant water controversy: - Under the **Kerala Ground Water (Control and Regulation) Act, 2002 (Act 19 of 2003)** and the **Kerala Ground Water (Control and Regulation) Rules, 2004**, the Government, exercising powers under **Section 6(1)**, notified certain areas as "notified areas." By **G.O.(P) No. 58/2005/WRD dated 19-11-2005, Chittoor (Palakkad District) was declared a notified area** (along with Athiyannur, Kodungalloor, Kozhikode and Kasaragode). - Consequently, under **Section 7** of the Act, extraction of groundwater in Chittoor requires a **permit from the Kerala State Ground Water Authority**. - By **KSEB Board Circular dated 05-06-2007 (Circular_Control_05-06-2007)**, the Board directed that an **electric connection to any open well / borewell within a notified area shall be given only on production of the Ground Water Authority permit**, treating that permit as a statutory clearance — in line with the proviso to **Clause 6(1) of the Kerala Electricity Supply Code** (now the **Kerala Electricity Supply Code, 2014**). - Under the

Ground Water Department's operating practice, the **District-level committee sanctions motors only in the 3–5 HP band**, and motors **above 5 HP require State-level authority** approval, so in practice farmers in this belt are effectively held at around **3 HP**, with long delays for anything higher. - Further, before the borewell / EB line is approved, the **Ground Water Authority requires the farmer to install a water flow meter on the well and submit its readings**, and grants the extraction/conversion permit **subject to a ceiling on daily extraction** fixed on the basis of a **yield test**. In our critical-zone belt these flow-meter, daily-log and yield-test conditions are difficult and impractical for small and marginal farmers to comply with and add further delay to obtaining the EB connection.

5. **Why 3 HP is not enough.** A 3 HP pump simply cannot lift adequate water from a borewell that is 800–1,000 ft deep. The result is that farms cannot be irrigated even where a valid well exists, causing crop loss and distress among paddy, banana, coconut and vegetable growers who have no alternative source of water.
6. **The TT (change-over) switch and the conditions that cause the delay.** Most agricultural pump-sets in Chittur draw supply under the **Free Electricity for Agriculture scheme**, implemented through the **Direct Benefit Transfer** framework vide **G.O. No. 82/2021/Agriculture dated 22-09-2021** (adopted by KSEB in **B.O.(FTD) No. 138/2022 dated 21-02-2022**), under which KSEB routes the irrigation-power bills to the **Krishi Bhavan (Agriculture Department)**, which verifies the farmer and settles the bill. Because of this scheme, sanction of the connection and of a **TT / change-over switch** is presently held up by **two layers of verification**: - **Krishi Bhavan (Agriculture Officer) verification** — eligibility for free/subsidised power requires a **cultivation certificate, land records (pokkuvaravu / chitta / adangal) or tenancy certificate, a willingness certificate and an Aadhaar-linked bank account** for the DBT/routing; and - **KSEB verification** — proof of ownership / possession of the premises (and, for Punja / Kole land or pumping from State rivers/canals, a **letter of authorisation / NOC from the Punja–Kole Special Officer** or authorised officer), plus the **sanctioned connected-load / HP limit**.

These layered conditions, together with the change-over-switch sanction requirement, make obtaining TT-switch permission slow and difficult. Crucially, **every motor is now fitted with a smart meter that automatically detects any overshoot of the sanctioned HP and levies a penalty** — so the original reason for restricting the change-over switch (fear of unauthorised excess load) no longer exists, and the permission can safely be eased.

3. Our prayer

We humbly request the Hon'ble Minister to:

1. **Remove the Ground Water Authority from the electric-connection process altogether.** The Ground Water Authority shall **not be involved at all** in granting an agricultural EB connection for a borewell **anywhere in the Chittur constituency**. Accordingly, the requirement — under the **KSEB Board Circular dated 05-06-2007** — that a Ground Water Authority permit be produced as a pre-condition for the connection should be **withdrawn / relaxed** for agricultural connections **throughout the Chittur taluk / block**, so that **KSEB grants the connection directly** without any reference to the Ground Water Authority.
2. **Sanction agricultural EB connections up to 5 HP as the norm** for genuine cultivators **across the Chittur constituency (Chittur taluk / block)** where the certified borewell depth exceeds a reasonable threshold (e.g. 500/800 ft), **directly by KSEB** on a simple application and well-depth certificate.
3. **Expedite connections above 5 HP** in genuinely deep borewells, on the basis of a well-depth certificate, **without any Ground Water Authority reference** and without routine referral delays.
4. Since the Ground Water Authority is not to be involved, the **flow-meter, daily-log and yield-test conditions** presently imposed by the Authority **shall not apply as a pre-condition** to the agricultural EB connection.
5. **Retain the concessional LT-VA agricultural tariff** for these enhanced-HP irrigation connections.
6. **Ease the permission to install a TT (change-over) switch throughout Chittur.** As explained in paragraph 2(6) above, sanction of the change-over switch is presently delayed by the layered **Krishi Bhavan** eligibility verification and **KSEB** ownership/load verification under the Free Electricity for Agriculture scheme (**G.O. No.**

82/2021/Agriculture dated 22-09-2021; KSEB B.O.(FTD) No. 138/2022 dated 21-02-2022). Since **every motor now carries a smart meter that automatically detects and penalises any HP overshoot**, the misuse concern is fully met; we therefore request that the **TT / change-over-switch permission be simplified and eased** — a single, time-bound sanction on the strength of the Krishi Bhavan certificate, without repeated verifications.

We are willing to furnish panchayat-wise lists of affected farmers, borewell-depth data and pending connection applications for the whole constituency.

4. Why the requested Government Order is valid and within the Government's competence

We respectfully submit that the Government Order prayed for is legally sound and can be issued without any amendment to any statute:

1. **The reliefs are procedural relaxations, not statutory changes.** The conditions that cause the delay — the KSEB Board Circular dated 05-06-2007 (GWA permit), the flow-meter / yield-test conditions, and the Krishi Bhavan + KSEB verification for the TT switch — are all **executive / subordinate instruments (Board Orders, circulars, scheme guidelines)**, which the Government and KSEB are competent to modify, relax or supersede by a further order. No amendment to the Kerala Ground Water Act, 2002 or to the Electricity Act, 2003 is required.
2. **The Free Electricity for Agriculture scheme is itself a creature of executive order.** It was created by **G.O. No. 82/2021/Agriculture dated 22-09-2021** and operationalised by **KSEB B.O.(FTD) No. 138/2022 dated 21-02-2022**; the same executive authority that framed the scheme is competent to **simplify its procedural conditions** by a fresh G.O.
3. **There is a clear precedent of relaxation.** The Government has already relaxed conditions under this very scheme — dispensing with the earlier requirement that farmers form a union, permitting **individual farmers to apply**, routing payment through **zero-balance accounts**, and directing KSEB to **stop issuing dues/disconnection notices** to farmers. The reliefs now sought are of the same administrative character and are consistent with this settled practice.
4. **An adequate safeguard already exists, so the relaxation is reasonable and non-arbitrary.** Because every motor is fitted with a **smart meter** that automatically detects and penalises any overshoot of the sanctioned HP (under the metering and tariff regime of the **Electricity Act, 2003** and the **KSERC / Kerala Electricity Supply Code, 2014**), easing the TT-switch and connection conditions **does not expose the exchequer or KSEB to loss or misuse**. The relaxation is therefore proportionate and satisfies the test of reasonableness under Article 14.
5. **The Order furthers declared State policy.** Facilitating irrigation power in Kerala's only major rain-shadow, "Critical" ground-water block directly advances the State's agricultural, drought-mitigation and food-security policy, and the object of the Free Electricity for Agriculture scheme itself.

5. Annexures (to be attached)

- Annexure A: Constituency-wide (panchayat-wise) list of affected farmers and pending/limited connections.
- Annexure B: Borewell depth certificates / sample.
- Annexure C: CGWB categorisation extract for Chittur block.
- Annexure D: Copy of G.O. No. 82/2021/Agriculture dated 22-09-2021 and KSEB B.O.(FTD) No. 138/2022 dated 21-02-2022.

Respectfully submitted,

For and on behalf of the Chittur Agriculture Marketing Society, Kozhinjampara

[Name, Designation] [Phone / Email]

Endorsed by: Adv. Sumesh Achuthan, MLA, Chittur

Annexure — Draft Government Order (model, for the Government's consideration)

The following is a model draft placed for the Government's consideration. The actual G.O. number, date and file references are to be assigned by the Department.

GOVERNMENT OF KERALA

Abstract

Power (Electricity) Department — Agricultural electric connections for deep bore-wells throughout the Chittur Assembly constituency (Chittoor taluk / block), Palakkad District — De-linking the connection from the Ground Water Authority permit, enhancing permissible motor capacity up to 5 HP, and easing TT (change-over) switch permission — Sanctioned — Orders issued.

POWER (ELECTRICITY) DEPARTMENT

G.O.(Ms) No. ____/2026/PD Thiruvananthapuram, dated __-__-2026

Read: 1. The Kerala Ground Water (Control and Regulation) Act, 2002 (Act 19 of 2003) and Rules, 2004.
2. G.O.(P) No. 58/2005/WRD dated 19-11-2005 (notified areas).
3. KSEB Board Circular dated 05-06-2007.
4. G.O. No. 82/2021/Agriculture dated 22-09-2021 (Free Electricity for Agriculture / DBT) and KSEB B.O.(FTD) No. 138/2022 dated 21-02-2022 adopting it.
5. Representation dated 15-07-2026 of the Chittur Agriculture Marketing Society, Kozhinjampara, forwarded by the MLA, Chittur.

ORDER

Whereas Chittoor block is a notified area under the Act read above (2) and one of the "Critical" ground-water blocks of the State; whereas bore-wells across the Chittur constituency now commonly exceed 800–1,000 ft, for which a 3 HP pump-set is technically insufficient; whereas the conditions causing delay are executive/subordinate instruments (the Circular read above (3) and the scheme read above (4)) that Government is competent to relax; and whereas every agricultural motor now carries a smart meter that automatically detects and penalises any overshoot of the sanctioned HP, so that easing these conditions causes no loss or misuse;

Government, having considered the matter, hereby order that, for the entire Chittur Assembly constituency (Chittoor taluk / block) —

- (1) the requirement under the Circular read above (3) — that a Ground Water Authority permit be produced as a pre-condition — shall NOT apply to agricultural connections; the Ground Water Authority shall not be involved in the grant of such connections;
- (2) KSEB Ltd. shall sanction agricultural (LT-VA) connections up to 5 HP directly, as a matter of course, to genuine cultivators on a simple application and well-depth certificate, where the certified bore-well depth exceeds [500/800] ft;
- (3) applications for connections above 5 HP for genuinely deep bore-wells shall be disposed by KSEB within [30] days on the basis of a well-depth certificate, without any Ground Water Authority reference;
- (4) accordingly, the Ground Water Authority's flow-meter, daily-log and yield-test conditions shall not apply as a pre-condition to the EB line;
- (5) the concessional LT-VA agricultural tariff shall continue to apply; and
- (6) the process for grant of permission to install a TT / change-over switch for agricultural connections shall be simplified and eased — a single, time-bound sanction on the strength of the Krishi Bhavan certificate, without repeated Krishi Bhavan / KSEB verifications — the smart meter being sufficient safeguard against any HP overshoot.

By order of the Governor,

Secretary to Government

To The Chairman & Managing Director, KSEB Ltd.

Copy to: Agriculture Dept. (Krishi Bhavan); Water Resources Dept.;
the Member Secretary, Kerala State Ground Water Authority; the MLA, Chittur.